

26PR00322 Guardianship of Rebeca Winnatu Montar

County: santa-barbara

Division: Guardianship

Department: 2 SM-Cook

Hearing date: 2026-08-18

Motion: Petition to Appoint Guardian of the Person w/ SIJF

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Tentative Ruling: Guardianship of Rebeca Winnatu Montar

Case Number

26PR00322

Case Type

Guardianship

Hearing Date / Time

Tue, 08/18/2026 - 09:00

Nature of Proceedings

Petition to Appoint Guardian of the Person w/ SIJF

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Proof of Personal Service. Proof of timely personal service of the notice of hearing and a copy of the petition (Prob. Code, § 1511) on Father, OR Consent to Appointment of Guardian and Waiver of Notice (Judicial Council form GC-211) OR adequately supported request to dispense with notice (CRC 7.52; see Local Court form SC-6014).

Proof of Timely Mailed Service. Proof of timely mailed service of the notice of hearing and a copy of the petition (Prob. Code, § 1511) on Grandparents, OR Consent to Appointment of Guardian and Waiver of Notice (Judicial Council form GC-211) OR adequately supported request to dispense with notice (CRC 7.52; see Local Court form SC-6014).

Declaration re: Abandonment, neglect, abuse, etc. There is no evidence on file that shows the proposed ward meets any standard under state law to justify the finding of Special Immigrant Juvenile Status. The court “shall” issue the order “if there is evidence to support those findings, which may consist of, but is not limited to, a declaration by the child who is the subject of the petition.” (Code Civ. Proc., § 155, subd. (b) [emphasis added].) There is no declaration on file.

Proposed Orders (Forms GC-240 & GC-224). Proposed orders on Judicial Council forms “shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order.” (SB Local Rule 1724.)

Proposed Letters (Form GC- 250) Proposed Letters are considered the same as proposed orders and must be submitted in compliance with Local Rule 1724.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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